

Opinion of the Court

to communications by a membership organization with its members, App. 164–166, which the Act exempts from its definition of “expenditures,” § 431(9)(B)(iii). In AIPAC’s view, these communications therefore did not violate § 441b’s corporate expenditure prohibition. 2 Record, Doc. No. 19, pp. 2–6. (And, if AIPAC was right, those expenditures would not count toward the \$1,000 ceiling on “expenditures” that might transform an ordinary issue-related group into a “political committee.” § 431(4).)

The FEC’s General Counsel concluded that, between 1983 and 1988, AIPAC had indeed funded communications of the sort described. The General Counsel said that those expenditures were campaign related, in that they amounted to advocating the election or defeat of particular candidates. App. 106–108. He added that these expenditures were “likely to have crossed the \$1,000 threshold.” *Id.*, at 146. At the same time, the FEC closed the door to AIPAC’s invocation of the “communications” exception. The FEC said that, although it was a “close question,” these expenditures were not membership communications, because that exception applies to a membership organization’s communications with its members, and most of the persons who belonged to AIPAC did not qualify as “members” for purposes of the Act. App. to Pet. for Cert. 97a–98a; see also App. 170–173. Still, given the closeness of the issue, the FEC exercised its discretion and decided not to proceed further with respect to the claimed “corporate contribution” violation. App. to Pet. for Cert. 98a.

The FEC’s determination that many of the persons who belonged to AIPAC were not “members” effectively foreclosed any claim that AIPAC’s communications did not count as “expenditures” for purposes of determining whether it was a “political committee.” Since AIPAC’s activities fell outside the “membership communications” exception, AIPAC could not invoke that exception as a way of escaping